

Smt. Rajesh Kumari v. Secretary, Electricity Board

High Court of Judicature at Allahabad · Division Bench · 5 May 2017 · Writ-C No. 17205 of 2017 · **Bill dated 5.10.2016 quashed for want of mandatory 6.8(b) notice and hearing; fresh assessment permitted.**

HEADNOTE

Clause 6.8(b) of the U.P. Electricity Supply Code, 2005 is mandatory. A provisional assessment made without notice and without fixing a date of hearing vitiates the consequential electricity bill, which is liable to be quashed, leaving the licensee free to reassess after following the prescribed procedure.

FACTUAL SUMMARY

Smt. Rajesh Kumari sought quashing of an electricity bill dated 5 October 2016 issued by the distribution licensee. On 25 April 2017 the Division Bench noted that the final assessment appeared to have been issued without a provisional assessment, notice or opportunity to object, which if correct would render recovery illegal, but the pleadings were unclear. Licensee's counsel was directed to take instructions. Those instructions, produced on 5 May 2017, showed the provisional assessment had been made without fixing a date of hearing and without issuing notice.

REUSABLE CONSTRUCTIONS

1. Clause 6.8(b) of the U.P. Electricity Supply Code, 2005 is mandatory: notice and a date of hearing must precede a provisional assessment. ¶ 1
2. Want of notice and opportunity of hearing before a 6.8(b) provisional assessment vitiates the consequential electricity bill, which is liable to be quashed, without prejudice to a fresh assessment after following the prescribed procedure. ¶ 1

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.8(b)

notice and hearing before provisional assessment

HOLDING

In the absence of notice and opportunity of hearing before making the provisional assessment, clause 6.8(b) of the U.P. Electricity Supply Code, 2005 being mandatory, the electricity bill dated 5.10.2016 cannot be sustained and is quashed; the licensee may make a fresh assessment after following the prescribed procedure. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — MERITS OF THE ASSESSMENT AND WHETHER UNAUTHORIZED USE OCCURRED

Licensee left free to make a fresh assessment after following the prescribed procedure. ¶ 1